

EU CUSTOMER ONBOARDING - COMPLIANCE ASSESSMENT (GAP ANALYSIS)

Prospective customer: a German client (EU / EEA). Data involved: names, emails, and usage data of EU data subjects.

Findings of this assessment: - Security controls: SATISFACTORY. Acme's Security & Backup Policy shows encryption at rest via AWS KMS, meeting GDPR Article 32. - Contractual basis: DEFICIENT. Acme has NOT executed a Data Processing Agreement (DPA) with the prospective German client. No signed DPA and no standard DPA template are on file for this engagement.

Conclusion: There is a GAP. GDPR Article 28 requires a signed Data Processing Agreement before onboarding. Onboarding cannot proceed until a DPA is executed. Interim measure under consideration: Standard Contractual Clauses (SCCs).